

PHA PERSONAL HEALTH ASSISTANT

Terms of Service, End User License Agreement,
and Legal Disclaimer — International Version
(for Users in the USA, EU, EEA, UK and similar jurisdictions)

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IMPORTANT LEGAL NOTICE

This is a legally binding agreement intended primarily for users in the United States and Europe (EU/EEA/UK). By using the PHA Personal Health Assistant application ("App" or "Service"), you acknowledge and agree that: (1) the Service is not a medical device and does not provide medical advice, diagnosis, or treatment; (2) all recommendations and data outputs are generated by artificial intelligence and must be treated strictly as general suggestions and advice for consideration only, not as full medical data or professional healthcare opinions; (3) you assume full risk and responsibility for any decisions or actions taken based on the App; and (4) you will always consult qualified licensed healthcare professionals before making health-related changes. The Company shall have no liability for reliance on AI-generated Outputs. Mandatory local consumer and data protection laws in your country may provide additional rights that this Agreement does not waive.

1. ACCEPTANCE OF TERMS

This Terms of Service, End User License Agreement, and Disclaimer Agreement ("Agreement") is a legally binding contract between you ("User", "you") and PHA Personal Health Assistant. Developed by ZORPH SRL (the "Company", "we", "us", "our"), the developer and operator of the PHA Personal Health Assistant mobile application and any related websites, APIs, or services (collectively, the "Service", "App", "Company", "we", "us", "our").

By downloading, installing, creating an account, accessing, or using any part of the Service, you confirm that you have read, understood, and unconditionally agree to be bound by this Agreement, including all disclaimers, limitations of liability, and data processing provisions. If you do not agree to any part of this Agreement, you must immediately stop using the App and delete it from your device(s).

2. DESCRIPTION OF THE SERVICE AND INTENDED PURPOSE

The Service is a personal wellness tracking and artificial intelligence-powered suggestion application designed for individual users. It enables voluntary input of personal health metrics, lifestyle data, activity logs, goals, and other wellness-related information. The App employs AI models to generate personalized recommendations, educational content, progress summaries, and general wellness suggestions (for example, ideas for daily activity, nutrition awareness, or habit tracking).

Intended Purpose: The Service is intended solely to support users in personal wellness tracking and to provide general, AI-assisted informational suggestions for self-directed lifestyle and wellness management. The Service is explicitly not a medical device, Software as a Medical Device (SaMD), clinical decision support tool, diagnostic instrument, or any form of healthcare delivery service. It does not replace, and is not intended to replace, professional medical care.

3. ELIGIBILITY

You must be at least 18 years of age (or the legal age of majority in your jurisdiction) to use the Service independently. If you are under 18, you may use the App only with the active supervision and explicit consent of a parent or legal guardian who agrees to this Agreement on your behalf. You represent and warrant that you have full legal capacity and authority to enter into this Agreement and to provide any data you submit to the App.

4. NATURE OF USER DATA, AI-GENERATED RECOMMENDATIONS, AND OUTPUTS

4.1 AI-Generated Content. All recommendations, insights, analyses, suggested actions, educational materials, reports, and other content displayed or delivered through the App ("Outputs") are produced by artificial intelligence systems, including large language models and specialized health/wellness AI components. These Outputs are derived from statistical patterns in training data, publicly available wellness literature, and the specific information

you voluntarily enter into the App.

4.2 Outputs Are Suggestions and Advice Only — Not Medical Data or Professional Advice. The Outputs are provided strictly as general suggestions and advisory information for your personal consideration and potential action. They do not constitute and must never be understood or represented as:

- Professional medical advice, clinical diagnosis, prognosis, or treatment recommendations;
- Full-fledged, authoritative, or complete medical data, laboratory results, or clinical findings;
- Prescriptions, pharmaceutical advice, supplement protocols, or therapeutic interventions;
- Substitutes for in-person consultations, examinations, or care by licensed physicians, specialists, nurses, or other qualified healthcare professionals.

4.3 Required Perception of Outputs. You expressly acknowledge, understand, and agree that you will perceive, interpret, and treat all Outputs solely as advisory suggestions to help inform your own personal wellness decisions and actions. You understand that AI systems are probabilistic, can generate inaccurate, incomplete, biased, outdated, or erroneous information (including so-called "hallucinations"), and that no guarantee is made regarding the correctness, suitability, or safety of any Output for your individual circumstances.

4.4 No Reliance Without Independent Professional Verification. Before taking any action based on Outputs — including changes to diet, exercise, sleep, supplements, medications, or any other health or lifestyle factor — you must consult with one or more qualified, licensed healthcare professionals who possess your complete medical history and can provide personalized clinical judgment. You agree never to disregard or delay seeking professional medical advice on the basis of anything you see or receive through the App.

5. EXPLICIT DISCLAIMER — NO MEDICAL ADVICE, NO HEALTHCARE RELATIONSHIP, NOT A REGULATED MEDICAL DEVICE

THE SERVICE DOES NOT PROVIDE MEDICAL ADVICE, DIAGNOSIS, TREATMENT, OR CLINICAL CARE OF ANY KIND.

The Company is not a healthcare provider, medical institution, or licensed medical professional. Use of the App does not create any doctor-patient, therapist-client, nurse-patient, or other professional healthcare or fiduciary relationship between you and the Company, its developers, employees, contractors, or any AI system.

The App is not a medical device and is not intended to be regulated as such. It qualifies as a general wellness and personal informatics / lifestyle application under the U.S. FDA's "Policy for Device Software Functions and Mobile Medical Applications" (enforcement discretion for low-risk wellness apps) and is not a Software as a Medical Device (SaMD) under EU MDR 2017/745 or equivalent rules. It does not perform clinical decision support that replaces professional judgment, diagnose, treat, mitigate, or prevent disease.

EMERGENCY WARNING: If you are experiencing a medical emergency, mental health crisis, severe symptoms, chest pain, difficulty breathing, or any other acute or life-threatening condition, immediately call emergency services (911 in the U.S., 112 in the EU, or your local equivalent) or go to the nearest emergency department. The App provides no emergency response, crisis intervention, or real-time clinical monitoring capabilities.

6. DATA PRIVACY, SECURITY, AND PROTECTION OF USER-ENTERED DATA

We are committed to protecting all personal data you voluntarily enter into the App, with particular attention to sensitive health and wellness information ("User Health Data").

6.1 Security Safeguards. User Health Data is protected by reasonable and appropriate technical and organizational security measures consistent with industry standards for sensitive personal information. These include encryption of data in transit (TLS) and at rest, strict access controls, secure cloud hosting with reputable providers, regular security audits, and implementation of privacy-by-design principles.

6.2 Legal Basis and Compliance. Processing of personal data, including special-category health data, is carried out only with your explicit, informed, and freely given consent for the specific purposes of delivering the personalized wellness features of the Service. We comply with applicable data protection laws, including EU GDPR / UK GDPR (including requirements for DPIA, privacy by design, and transparency under the AI Act for generative AI outputs), and U.S. laws including the California Consumer Privacy Act (CCPA/CPRA) for California residents. For EU/EEA

users, international data transfers (if any) are safeguarded by European Commission-approved Standard Contractual Clauses (SCCs) or equivalent mechanisms. We conduct DPIAs for high-risk processing as required.

6.3 Your Data Rights (Regional). Depending on your location you have rights including: access, rectification, erasure, restriction, portability, objection, and (for automated decision-making including AI recommendations) the right to human review or opt-out where applicable. California residents have additional rights to know/delete/opt-out of "sale"/sharing of personal information and non-discrimination. You may withdraw consent at any time. Contact us (Section 13) or, for EU users, your local Data Protection Authority (DPA). We do not "sell" personal data as defined under CCPA.

Aggregated and fully anonymized data may be used internally to improve the quality and safety of the AI models and the overall Service. Any third-party AI providers used for generating Outputs operate under binding data processing agreements that require confidentiality and security safeguards no less protective than our own.

7. LIMITATION OF LIABILITY, ASSUMPTION OF RISK, AND INDEMNIFICATION

7.1 Assumption of Risk. YOU USE THE SERVICE AND RELY ON ANY OUTPUTS ENTIRELY AT YOUR OWN RISK. The Company provides the Service and all AI-generated Outputs on an "as is" and "as available" basis without any warranties, express or implied, regarding accuracy, completeness, reliability, suitability for any purpose, or non-infringement.

7.2 Broad Limitation of Liability. To the maximum extent permitted by applicable law and international law, the Company, its developers, officers, employees, agents, contractors, and any underlying AI technology licensors shall have ZERO LIABILITY for any and all claims, damages, losses, costs, or expenses (including but not limited to direct, indirect, incidental, special, consequential, punitive, exemplary, or reputational damages, loss of profits, loss of data, personal injury, adverse health outcomes, or business interruption) arising out of or related in any way to:

- Your access to, use of, or inability to use the App or any Outputs;
- Any decision, action, or inaction you take (or fail to take) in reliance on the App or its Outputs;
- The accuracy, completeness, timeliness, or appropriateness of any AI-generated recommendation or information;
- Any health effects, adverse reactions, injuries, complications, or other consequences resulting from following or ignoring App suggestions;
- Any unauthorized access to or alteration of your data, or any security incident beyond our reasonable control.

This limitation applies regardless of the legal theory (contract, tort including negligence, strict liability, or otherwise) and even if we have been advised of the possibility of such damages. Some jurisdictions do not allow the exclusion or limitation of certain damages; in such cases our liability shall be limited to the minimum extent permitted by law.

7.3 Indemnification. You agree to indemnify, defend, and hold harmless the Company and its affiliates from and against any claims, actions, suits, proceedings, losses, damages, liabilities, judgments, costs, and expenses (including reasonable attorneys' fees and costs) arising out of or relating to (i) your use of the Service, (ii) your violation of this Agreement, (iii) your reliance on any Outputs, or (iv) any data, content, or materials you submit to the App.

8. INTELLECTUAL PROPERTY RIGHTS AND LICENSE GRANT

The App, its software code, user interface design, AI models and associated methodologies (to the extent proprietary), content, graphics, logos, trademarks, and all other intellectual property ("IP") are owned by or licensed to PHA Personal Health Assistant. Developed by ZORPH SRL (the "Company"). Subject to your full compliance with this Agreement, we grant you a limited, revocable, non-exclusive, non-transferable, non-sublicensable license to install and use the App solely for your own personal, non-commercial purposes on devices that you own or lawfully control. You may not reverse engineer, decompile, modify, distribute, or create derivative works from the App or its AI components.

9. TERMINATION AND SUSPENSION

We may, at our sole discretion and without prior notice, suspend or permanently terminate your access to the Service for any reason, including but not limited to violation of this Agreement, suspected misuse, or legal requirements. Upon termination you must immediately delete the App from all your devices. All provisions of this

Agreement that by their nature should survive termination (including Sections 4, 5, 6, 7, 8, 10, 11, and 14) shall remain in full force and effect after termination or expiration.

10. GOVERNING LAW AND JURISDICTION

This Agreement and any dispute arising out of or relating to it or the Service shall be governed by and construed in accordance with the laws applicable to the Company, without regard to its conflict of laws principles. However, if you are a consumer residing in the European Union, European Economic Area (EEA), United Kingdom, Switzerland, or the United States (including any U.S. state such as California), nothing in this Agreement shall limit or exclude any non-waivable rights, remedies, or protections you are entitled to under the mandatory consumer protection laws, data protection laws (including GDPR, UK GDPR, or CCPA/CPRA), or other applicable laws of your country or state of residence. In the event of any conflict, such mandatory local laws shall prevail to the extent of the conflict. You may bring claims in the courts of your country of residence where mandatory consumer protection law so requires.

11. MODIFICATIONS TO THIS AGREEMENT

We reserve the right to update, amend, or replace this Agreement at any time at our sole discretion. The current version will be posted within the App (or on any associated website) with an updated "Last Updated" date. Your continued use of the Service after any such changes constitutes your acceptance of the revised Agreement. It is your responsibility to review this Agreement periodically.

12. MISCELLANEOUS PROVISIONS

This Agreement, together with our Privacy Policy (if separately published), constitutes the entire agreement between you and the Company concerning the subject matter hereof and supersedes all prior or contemporaneous agreements, representations, and understandings. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect. No failure or delay by us in exercising any right under this Agreement shall constitute a waiver. You may not assign or transfer this Agreement or any rights hereunder without our prior written consent; we may freely assign our rights and obligations.

13. CONTACT AND NOTICES

For any questions regarding this Agreement, to exercise your data protection rights, to report a security issue, or to provide legal notices, please contact the operator:

PHA Personal Health Assistant. Developed by ZORPH SRL Email: support@pha-app.net Primary contact: via the App support channel or your registered email associated with the account.

FINAL ACKNOWLEDGMENT AND CONSENT

BY DOWNLOADING, INSTALLING, OR USING THE PHA PERSONAL HEALTH ASSISTANT APPLICATION, YOU HEREBY CONFIRM AND AGREE THAT:

- You have carefully read, fully understood, and voluntarily accept this entire Agreement, including the prominent disclaimers stating that the Service is not medical advice and that all AI-generated Outputs are to be treated strictly as advisory suggestions and not as full medical data or professional healthcare opinions.
- You understand the risks associated with AI-generated content and will always consult qualified licensed healthcare professionals before making any health, dietary, exercise, supplement, medication, or other medical decisions based on information from the App.
- You accept full personal responsibility and all risk for any and all consequences arising from your use of the App and your reliance (or non-reliance) on its Outputs.
- All data you input into the App is provided voluntarily, and you consent to its collection, processing, and protection as described in Section 6 in accordance with applicable data protection laws and privacy principles.

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